

"Capture The Imagination Through Media"

# CONTENT BROADCASTING AGREEMENT

This AGREEMENT (hereinafter referred to as the "Agreement") is made effective this 21 day of March, 2008 by and between Persistence Multimedia Productions LLC, located at 1138 N. Germantown Pkwy Suite 101-225 Cordova, TN (hereinafter referred to as the "Production Company") and David Cool, located at 88 Delisle Chateauguay, Quebec Canada J6K 3E4 (hereinafter referred to as the "Content Provider")

## 1) SERVICES

A. DigiMusic Tv.com is a broadband (streaming) website that broadcast interviews, educational information, history, events and entertainment to a worldwide audience of music lovers and professionals alike. Viewers obtain knowledge of the wide spectrum of individuals and organizations that keep the world of music spinning. DigiMusic Tv.com is committed to building relationships with music organizations to promote awareness and create dialogue between musicians worldwide. As a network that is concentrated toward the music community, one of DigiMusic Tv.com's mission is to inform and entertain viewers through the broadcasting of music oriented documentaries and dramas. DigiMusic Tv.com is a division of Production Company.

B. Content Provider owns or otherwise has reproduction, performance, display and distribution rights with respect to the audiovisual content listed on Schedule B attached hereto and/or hereafter supplied to Production Company pursuant to this Agreement and desires to broadcast its Digital Video Titles through the services offered by Production Company.

C. Access to Digital Video Titles will be provided through the live broadcast hyper links throughout the internet website DigiMusic Tv.com.

## 2) FINANCIAL

A. Revenue Share. All revenue generated from the sales of (video) advertisement on the internet website DigiMusic Tv.com during which the "Digital Video Titles" set forth in this Agreement are broadcasted will be shared with Content Provider according to the terms set forth in Schedule A.

B. Processing; Fulfillment. Production Company shall process all transactions involving sales of (video) advertisement and shall have the sole authority to collect all applicable payments owed by Sponsors and/or Advertisers, provided, Production Company does not guarantee that there will be any minimum revenue.

C. Reporting and Payment. Upon the end of each calendar quarter during the term of this Agreement, Production Company shall deliver to Content Provider a report that reflects the broadcast history of the Digital Video Titles set forth in Schedule B in this Agreement and commissions earned according to the terms set forth in Schedule A in this Agreement, during the prior quarter. Within ten (10) days of the delivery of such report, Production Company will deliver payment for the amounts payable to Content Provider hereunder (collectively, the "Quarterly Payment").

## 3) INTELLECTUAL PROPERTY

A. Licenses. Subject to the terms and conditions of this Agreement, Content Provider hereby grants to Production Company a worldwide, non-exclusive, royalty-free (except as provided in Section 2.A above), right and license to (i) use, display, encode, copy, digitize, perform, reproduce, reformat for online display, market, promote, transmit, and translate the Digital Video Titles (including, but not limited to, any trademark, service mark, URL, domain name, trade name, other proprietary logo or insignia, or other source or business identifier, that is embedded or incorporated into such Digital Video Titles) and take such other action as necessary to prepare the Digital Video Titles to be broadcast via Internet Protocol; (ii) broadcast the Digital Video Titles and any portion thereof to Viewers via Internet Protocol, as set forth in this Agreement (collectively, "Use"); (iii) use in any and all media (x) the names and likenesses of the artists/performers appearing in the Digital Video Titles, (y) the logos, trademarks, service marks and trade names applicable to the Digital Video Titles and Content Provider (the "Content Provider Brand Features"), and (z) excerpted images and sounds from the Digital Video Titles, in each case as Production Company, in its discretion, deems appropriate, to market (video) advertisement sales and internet website DigiMusic Tv.com.

B. Representations. Content Provider hereby represents and warrants to Production Company that: (i) Content Provider owns all right, title and interest in and to, or has a valid and existing license to reproduce, display, perform, distribute and license to Production Company in the manner contemplated hereby, all Digital Video Titles (including, without limitation, all graphics, images, music recordings and any other content contained therein) and all Content Provider Brand Features; (ii) Content Provider has the power and authority to enter into this Agreement and to perform its obligations hereunder and Content Provider is not a party to or subject to any other agreement that would prevent Content Provider from performing its obligations hereunder; (iii) all Digital Video Titles and Content Provider Brand Features, and the Use of the Digital Video Titles and Content Provider Brand Features by Production Company as contemplated in this Agreement, will not violate any laws or violate or infringe or misappropriate any rights of any third party, and will not give rise to any claim of any such violation, infringement or misappropriation, including, without limitation, any claims of fraud, misrepresentation, libel, slander, defamation, copyright infringement, infringement of moral rights, trademark infringement, false designation of origin, disparagement, violation of privacy, publicity, identity or other proprietary rights, violation of patent or shop rights, piracy or plagiarism; (iv) the Digital Video Titles do not contain any content that is in any way obscene or indecent unless such video is clearly identified as containing such content, or any content that advocates hostility to a person's race, ethnic background, sex, age or religious beliefs; and (v) to the extent that Content Provider is required to obtain rights, licenses, approvals, consents and/or attribution information necessary for Production Company to use the Digital Video Titles or Content Provider Brand Features in accordance with this Agreement, Content Provider has done and will continue to do so promptly, accurately and completely, and the Digital Video Titles and Content Provider Brand Features do and shall continue to incorporate the necessary credit and/or attribution information.

C. Reservation of Rights. The parties acknowledge and agree that, (i) as between Production Company and Content Provider, Content Provider shall retain any and all ownership and proprietary rights in (A) the Digital Video Titles and (B) the Content Provider Brand Features, and all copyrights and other intellectual property rights therein (collectively, "Content Provider Rights"); and (ii) as between Production Company and Content Provider, Production Company shall retain any and all ownership and proprietary rights in the internet website DigiMusic Tv.com and all copyrights and other intellectual property rights therein, including, without limitation, all enhancements conceived, made or implemented thereto (collectively, "Production Company Rights"). Except as otherwise expressly set forth herein, nothing in this Agreement shall be construed to grant any of the Content Provider Rights to Production Company or any other person, or to grant any of the Production Company Rights to Content Provider or any other person.

## 4) TERMS AND TERMINATION

A. Delivery of Digital Video Titles and Metadata. Content Provider shall deliver to Production Company, free of charge, the Digital Video Titles for broadcasting under this Agreement in accordance with the technical specifications mutually agreed to by the parties. Content Provider will also provide Production Company with metadata describing the Digital Video Titles, in the format set forth on Schedule B, as well as graphical images and other promotional material necessary to promote the Digital Video Titles on the Site.

B. Term. The term of this Agreement shall commence on the date hereof and continue for a one (1) year period (the "Initial Term"). Thereafter, this Agreement shall automatically renew for successive one (1) year periods, unless either party notifies the other party in writing of its intention not to renew at least thirty (30) days before the end of the Initial Term.

C. Effect of Termination. Upon expiration or termination of this Agreement, each party shall promptly return or destroy all Confidential Information of the other party in its possession, including any copies or partial copies thereof, and certify to the other party in writing that it has done so; provided, however, neither party shall not be required to return or destroy Confidential Information which has been provided to any governmental agency having jurisdiction over the such party.

## 5) INDEMNITY; LIMIT OF LIABILITY

A. Production Company Indemnification. Production Company shall indemnify and hold harmless Content Provider, its affiliates, their respective successors and assigns, and their respective officers, directors, agents and employees, from and against all third party claims, and all liabilities, losses, costs and damages (including reasonable fees and costs of attorneys and other professionals) ("Losses") incurred in connection with such third party claims, arising out of, resulting from or related to any breach or alleged breach of Production Company's representations, warranties or covenants in this Agreement .

B. Content Provider Indemnification. Content Provider shall indemnify and hold harmless Production Company, its affiliates, their respective successors and assigns, and their respective officers, directors, agents and employees, from and against all third party claims, and all Losses incurred in connection with such third party claims, arising out of, resulting from or related to (i) any breach or alleged breach of Content Provider's representations, warranties or covenants in this Agreement or (ii) any Use or reliance by Production Company on any of the Digital Video Titles or any Content Provider Brand Features (including, without limitation, any and all claims that Production Company's Use of the Digital Video Titles or any Content Provider Brand Features slanders, defames or disparages any third party or infringes upon the intellectual property, proprietary or other rights of any third party or violates any law).

C. Indemnification Obligations. If a party entitled to indemnification hereunder (the "Indemnified Party") becomes aware of a matter which might give rise to a claim under this Section, the Indemnified Party shall notify the party obligated hereunder to indemnify it (the "Indemnifying Party") immediately of the matter (stating in reasonable detail the nature of the matter and, if practicable, the amount claimed) and consult with the Indemnifying Party with respect to the matter and if the matter has become the subject of proceedings the Indemnified Party shall notify the Indemnifying Party within sufficient time to enable the Indemnifying Party to contest the proceedings before final judgment. The Indemnified Party shall: (i) give any information and assistance the Indemnifying Party may reasonably request to dispute, resist, appeal, compromise, defend, remedy or mitigate the matter; or enforce against a person (other than the Indemnifying Party) the Indemnified Party's rights in relation to the matter; and (ii) in connection with proceedings related to the matter (other than against the Indemnifying Party) use

counsel chosen by the Indemnifying Party and, if the Indemnifying Party requests, allow the Indemnifying Party the exclusive conduct of the proceedings, in each case against an indemnity from the Indemnifying Party to the Indemnified Party for all reasonable costs incurred for outside counsel as a result of a request or choice by the Indemnifying Party.

D. Limitation of Liability. EXCEPT FOR LIABILITY IN RESPECT OF A PARTY'S INDEMNIFICATION OBLIGATIONS HEREUNDER, (i) NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL OR EXEMPLARY DAMAGES (EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY FOR SUCH DAMAGES) SUCH AS, BUT NOT LIMITED TO, LOSS OF REVENUE OR ANTICIPATED PROFITS OR LOST BUSINESS, AND (ii) IN NO EVENT WILL EITHER PARTY'S LIABILITY TO THE OTHER FOR ANY CLAIM RELATED TO THIS AGREEMENT OR THE SERVICES PROVIDED HEREUNDER, WHETHER ARISING IN CONTRACT, TORT OR ANY OTHER LEGAL THEORY, EXCEED THE AGGREGATE AMOUNT RECEIVED AND RETAINED BY THE CONTENT PROVIDER PURSUANT TO THIS AGREEMENT DURING THE 12-MONTH PERIOD IMMEDIATELY PRIOR TO THE OCCURRENCE OF THE EVENT GIVING RISE TO THE CLAIM.

## 6) MISCELLANEOUS

A. Miscellaneous. Neither party may assign any of its rights or obligations under this Agreement without the prior written consent of the other, except that each party may assign any of its rights and obligations under this Agreement without consent: (i) in connection with any merger, consolidation, reorganization, sale of all or substantially all of its related assets or similar transaction; or (ii) as otherwise set forth in this Agreement. This Agreement will be binding upon, inure to the benefit of and be enforceable by the parties and their respective successors and permitted assigns. A waiver of any breach or default under this Agreement will not constitute a waiver of any other or subsequent breach or default. The failure of either party to enforce any term of this Agreement will not constitute a waiver of such party's rights to subsequently enforce the term. The remedies specified in this Agreement are in addition to any other remedies that may be available at law or in equity. Neither party shall be in default or otherwise liable for any delay in or failure of its performance under this Agreement if such delay or failure arises by any reason beyond its reasonable control, including any act of God, any acts of the common enemy, the elements, earthquakes, floods, fires, epidemics, riots, failures or delay in transportation or communications, labor strikes or work stoppages; provided, a lack of funds shall not be deemed a reason beyond a party's reasonable control. The parties acknowledge that the relationship of Production Company and Content Provider is that of independent contractors. This Agreement shall be governed by the laws of the state of Tennessee, without regard to its conflict of law rules.

B. Entire Agreement. This Agreement, together with the Schedules attached hereto, reflects the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior agreements and understandings between the parties relating to the subject matter hereof.

IN WITNESS WHEREOF, the parties hereto, intending to be legally bound hereby, have each caused to be affixed hereto its or his/her hand and seal the date indicated.

By: _____ [Signature]

Legal Name of Content Provider:
(royalty checks will be made payable to the above entity)

(if applicable)Tax ID # :

_____

Date: 3/21/08

Address: 88 Delisle
Chateauguay Quebec
Canada J6K 3E4

Persistence Multimedia Productions LLC.

By: Sheldon D. Bradley [Signature]

Title: CEO

Date: 3/21/08

Address: 1138 N. Germantown Pkwy
Suite 101-225
Cordova, TN 38016
Fax: 815.642.8486

# Schedule A

## Revenue Share:

- For purposes of this Schedule A, "Revenue" means all amounts actually received by Production Company in respect of sales of (video) advertisement, less sales/use taxes, credits, allowances and returns.
- Commissions. Content provider will be paid commissions from the revenue generated by the sales of (video) advertisement on the internet website DigiMusic Tv.com during which the "Digital Video Titles" set forth in Schedule B are broadcast. Content provider will be paid a 10% commission on sales from $1,000 - $7,999 of (video) advertisement purchased by sponsors and/or advertisers for any given month. Content provider will be paid a 15% commission on sales $8,000 and above of (video) advertisement purchased by sponsors and/or advertisers for any given month.
- Scheduling. Individual Digital Video Titles set forth in Schedule B will be broadcast for no less than a seven (7) day period and no more than a thirty (30) day period. Example (1), Production Company has generated $11,000 in (video) advertisement sales for a given month, and Production Company elected to broadcast Digital Video Title (A) for week 1-3 and Digital Video Title (B) for week 4 from Content provider (A), then Content Provider (A) earns $1,650 in commissions from sales of (video) advertisement for that given month. Example (2), Production Company generated $18,000 in (video) advertisement sales for a given month, and Production Company elected to broadcast Digital Video Title (A) for week 1-3 from Content provider (A) and Digital Video Title (B) for week 4 from Content provider (B), then Content Provider (A) earns $2,025 (($18,000/4) x 15% x 3) in commissions and Content Provider (B) earns $675 (($18,000/4) x 15%) in commissions from sales of (video) advertisement for that given month. Production Company shall deliver to Content Provider a report each calendar quarter as stated in Sec. 2.C .
- Content Provider, in its sole discretion, may provided web banners to Production Company (free of charge) to promote their brand and direct viewer traffic to Content Provider's Digital Video Title inventory. Web banners and targeted urls will be reviewed by Production Company and will be displayed on the internet website DigiMusic Tv.com only during the scheduled broadcasting of Digital Video Titles" set forth in Schedule B, permitting ad space availability.